

CodeXX DTDK

Terms of Service (TOS) — Version 1.0 (English)

Last updated: 27 June 2026

Applies to: codexx-dtdk.com, landing.codexx-dtdk.com, codegen.codexx-dtdk.com and all associated subdomains.

Acceptance of Terms

These Terms of Service (the **"TOS"** or **"Terms"**) govern access to and use of the CodeXX DTDK websites and online services (collectively, the **"Site"**), operated by William Karol Di Cioccio, a sole trader registered under VAT no. IT02224180667 (the **"Operator"**).

By accessing or using the Site, the user ("User") accepts these Terms in full. If the User does not accept these Terms, they should not use the Site.

These Terms govern only the use of the Site and online services. Use of the downloadable CodeXX DTDK Software is governed separately by the End User License Agreement (EULA), available at codexx-dtdk.com/legal/eula.

1. Description of Services

The Site offers the following services:

- Information on the CodeXX DTDK project and its components: docsgen, codegen, linter and MCP server (Product Components). The DTDK Manager and DTDK Shim are transparent distribution infrastructure, not separately licensed.
- Public technical documentation.
- Software downloads via official installers and verified archives with Sigstore attestation.
- Free tiers without purchase: docsgen is available free of charge for any use, including commercial, without registration or a License Token. The base memory-safety analysis profile (borrow-checking) of the linter is available free of charge, including for commercial use, under the Community License.
- Purchase of commercial licenses (Pro and Team) via Polar, Merchant of Record, subject to its own terms and conditions.
- Design-partner and beta-testing program by invitation, subject to a separate NDA.
- Project communications and updates.

The Operator reserves the right to modify, suspend or discontinue any service offered through the Site at any time, with or without notice.

2. Purchases and Licenses

2.1 Free tiers

Some Software features are available free of charge without purchase or a License Token. The free tiers (docsgen and the base borrow-checking profile) require neither an account nor a payment transaction. The terms of use of the free tiers are defined in the EULA.

2.2 Merchant of Record

Purchases of Pro and Team licenses through the Site are handled by Polar, acting as Merchant of Record. Polar is responsible for collecting payments, handling VAT and applicable taxes, and issuing tax receipts. Polar's terms and conditions apply to payment transactions.

2.3 License activation

Following a successful purchase, the Licensee receives a License Token for offline activation of the Software via the DTDK Manager. The Token is personal, non-transferable and non-refundable save as provided by applicable law.

2.4 Right of withdrawal

Consumers resident in the European Union have a fourteen (14) day right of withdrawal from the date of purchase, under Legislative Decree 206/2005 and Directive 2011/83/EU. The right of withdrawal lapses once the Software is downloaded or the License Token is activated, subject to the User's express consent and waiver of the right of withdrawal as required by law. Consumers resident outside the EU retain any mandatory withdrawal or cancellation rights provided by their local law.

2.5 Prices

Prices of commercial licenses are shown on the Site in euros (EUR) and include VAT where applicable. The Operator reserves the right to change prices at any time; changes do not apply to purchases already completed.

3. Acceptable Use of the Site

The User agrees to use the Site solely for lawful purposes and in compliance with these Terms. It is prohibited to:

- use the Site for illegal, fraudulent or harmful activities;
- attempt to access non-public areas of the Site or the Operator's systems without authorization;
- scrape, automatically crawl or mass-collect data from the Site without the Operator's prior written consent;
- interfere with the operation of the Site or connected servers and networks;
- transmit viruses, malware or any other harmful code through the Site;
- impersonate the Operator or other users, or provide false information during registration or purchase;
- use the Site to send unsolicited communications (spam).

4. Intellectual Property of the Site

All Site content, including text, graphics, logos, icons, technical documentation, information architecture and HTML/CSS code, is the property of the Operator or its respective owners and is protected by Italian and European copyright law.

Private consultation and reproduction of Site content for personal, non-commercial use is permitted. Any other use requires the Operator's prior written consent.

The marks, trade names and logos "CodeXX", "CodeXX DTDK", "codegen", "docsgen" and related are the property of the Operator. Their unauthorized use is prohibited.

5. User Content

The Site may allow the User to submit feedback, bug reports, feature requests or other content ("User Content"). By submitting User Content, the User grants the Operator a non-exclusive, royalty-free, worldwide and irrevocable license to use, reproduce, modify and incorporate such content into the Software or documentation, without obligation of compensation.

The User warrants that they hold the necessary rights to the User Content submitted and that it does not infringe third-party rights or applicable law. The Operator reserves the right to remove any User Content deemed inappropriate or in breach of these Terms.

6. Privacy and Personal Data

Personal data of Users is processed in accordance with the GDPR (Reg. EU 2016/679) and applicable law. The full privacy notice — including a section on California privacy rights (CCPA/CPRA) — is available at codexx-dtdk.com/privacy.

The Site uses technical cookies necessary for operation. The use of analytics or profiling cookies, where present, is subject to the User's consent as indicated in the cookie notice available on the Site.

Contact data provided for the design-partner program or newsletter is processed solely for the purposes indicated at collection and is not shared with third parties, save as necessary for the technical management of the service.

7. External Links

The Site may contain links to third-party websites (including GitHub, Polar and other services). Such links are provided for the User's convenience. The Operator has no control over the content of such sites and is not responsible for their availability, accuracy or compliance with applicable law.

8. Availability of the Site

The Operator endeavors to keep the Site available as far as reasonably possible but does not warrant uninterrupted availability. The Site may be temporarily unavailable for maintenance, updates or force majeure.

The Operator is not liable for damage arising from the temporary unavailability of the Site or download services, including the inability to activate a license during maintenance.

9. Disclaimer of Warranties

THE SITE AND ITS CONTENT ARE PROVIDED "AS IS", without warranty of any kind, express or implied, including warranties of accuracy, completeness, fitness for a particular purpose or non-infringement.

The Operator does not warrant that the Site is free of errors, viruses or other harmful elements, nor that content is always up to date. The User is responsible for adopting adequate security measures before downloading any file from the Site.

10. Limitation of Liability

To the maximum extent permitted by applicable law, the Operator shall not be liable for indirect, incidental, consequential or punitive damages arising from use or inability to use the Site.

The Operator's aggregate liability to the User for any cause is limited to the amount the User has paid the Operator in the preceding twelve months, or €100.00 if no payment has been made. The Operator's willful misconduct or gross negligence is excluded from this limitation.

These limitations do not prejudice the mandatory rights of consumers under applicable law.

11. Changes to the Terms

The Operator reserves the right to change these Terms at any time. Changes will be published on the Site with the date of last update. For material changes, the Operator will provide a visible notice on the Site with at least thirty (30) days' notice.

Continued use of the Site after the changes are published constitutes acceptance of the new Terms.

12. Governing Law and Jurisdiction

These Terms are governed by Italian law. For disputes with professionals or businesses: exclusive jurisdiction of L'Aquila, Italy. For consumers: mandatory consumer-protection provisions apply, including the forum of the place of residence (within the EU) and any mandatory local consumer rights for non-EU consumers. For non-EU Users: Italian law applies, excluding conflict-of-law rules.

13. Final Provisions

Assignment: the Operator reserves the right to assign these Terms to a limited company (e.g. an S.R.L.) which it owns or controls, without the User's consent. The User will be informed by an update to these Terms.

Entire agreement: these Terms, together with the EULA and the privacy notice, constitute the entire agreement between the parties regarding use of the Site.

Severability: the invalidity of any provision does not affect the remainder.

Language: this English version is the operative version for international Users; an Italian version is available for Users in Italy. Both are governed by Italian law.

Contact: legal@codexx-dtdk.com

By using the Site, the User declares having read and accepted these Terms of Service in full.

CodeXX DTDK — Holder: William Karol Di Cioccio — VAT IT02224180667 — codexx-dtdk.com